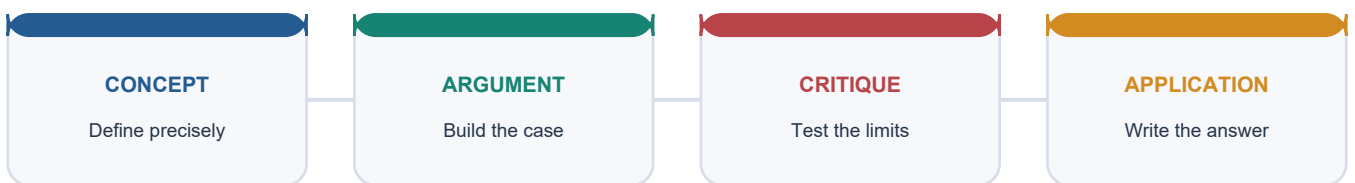


COMPLETE LEARNING SESSION

Polity Topic 35 - NHRC and SHRC

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity Topic 35 - NHRC and SHRC

Subject: Polity | **GS Paper:** GS-II | **Control date:** 8 September 2026

Source control: canonical Basic/Core and optional Advanced owners; audited 2018 and 2021 GS-II routing ledgers; OCR-searchable local *Indian Polity* material; the official NHRC consolidated PHRA text amended through 2019; the 2006 and 2019 amendment texts; Supreme Court judgments in *Paramjit Kaur v State of Punjab*, *N.C. Dhoundial v Union of India* and *Extra Judicial Execution Victim Families Association v Union of India*; OHCHR Paris Principles; and date-controlled GANHRI material. Volatile incumbents, vacancy counts, pendency totals and compensation statistics are omitted.

Core thesis: NHRC and SHRC are statutory rights watchdogs with substantial inquiry, evidence, reporting and promotional powers, but they remain bounded by recommendatory remedies, jurisdictional bars, federal scope and a special armed-forces procedure.

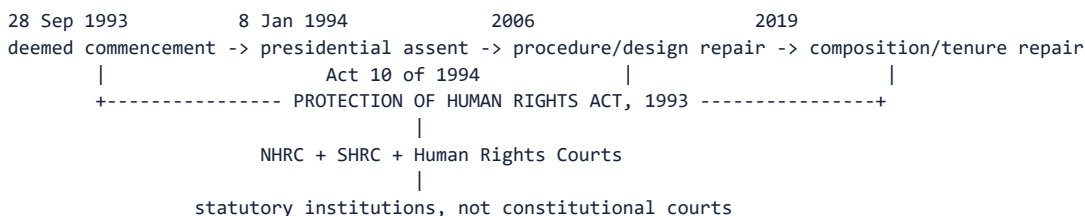
BASIC LEARNING SESSION

Learning roadmap

Foundation	Institutional design	Procedure	Boundaries	Application
status, chronology, definition	NHRC and SHRC composition, selection, tenure	functions, evidence, investigation, recommendations, reports	overlap, one year, armed forces, court relation	cases, comparisons, strengths, reforms

SESSION 1 - STATUTORY IDENTITY, ORIGIN AND AMENDMENT MAP

VISUAL FIRST



Definition

The National Human Rights Commission (NHRC) and State Human Rights Commissions (SHRCs) are statutory bodies constituted under the Protection of Human Rights Act, 1993 (PHRA).

Answer-grabbing line

The PHRA gives Human Rights Commissions a legal mandate and defined inquiry machinery, but the same statute also fixes their jurisdictional and remedial limits.

Must-write keywords

Protection of Human Rights Act, 1993; Act 10 of 1994; statutory body; 28 September 1993; 8 January 1994; 2006 Amendment; 2019 Amendment

Claim -> named evidence -> analysis -> qualification

- **Claim:** NHRC and SHRC derive authority from legislation rather than directly from the Constitution.
- **Named evidence:** Section 3 requires the Central Government to constitute NHRC, while section 21 permits a State Government to constitute an SHRC.
- **Analysis:** Their powers, composition, procedure and limits must therefore be read from the PHRA as currently amended.

- **Qualification:** Statutory status neither makes the bodies unconstitutional nor converts them into courts, tribunals or executive departments.

Evidence and explanation

[FACT] The Act is called the Protection of Human Rights Act, 1993, but it received presidential assent on 8 January 1994 as Act 10 of 1994 and is deemed to have commenced on 28 September 1993.

[FACT] The current section 1 extends the Act to the whole of India.

[FACT] The 2006 Amendment inserted the court-direction route in section 12(a), widened the institutional-visit clause, enabled NHRC-to-SHRC complaint transfer through section 13(6)-(7), recast section 18, reduced the SHRC design from a Chairperson plus four members to a Chairperson plus two members, enabled common State appointments, and revised procedure and service provisions.

[FACT] The 2019 Amendment widened NHRC and SHRC chairperson eligibility, increased NHRC expert members from two to three with at least one woman, expanded deemed membership from four specialised office-holders to seven, reduced ordinary tenure from five to three years while retaining the age ceiling, strengthened chief-executive administrative wording, and added Union-territory arrangements.

[LIMIT] The extension of the Act to the whole of India also reflects the Jammu and Kashmir Reorganisation Act, 2019; do not attribute every territorial-text change to the PHRA Amendment Act alone.

Evidence checkpoint

Use **Section 3 requires the Central Government to constitute NHRC, while section 21 permits a State Government to constitute an SHRC.** to prove the claim, explain the institutional mechanism, and close with this limit: **Statutory status neither makes the bodies unconstitutional nor converts them into courts, tribunals or executive departments.**

Prelims trap

Do not call NHRC or SHRC a constitutional body, a court, or a body created in 1994 merely because the assent year is 1994.

Mains use

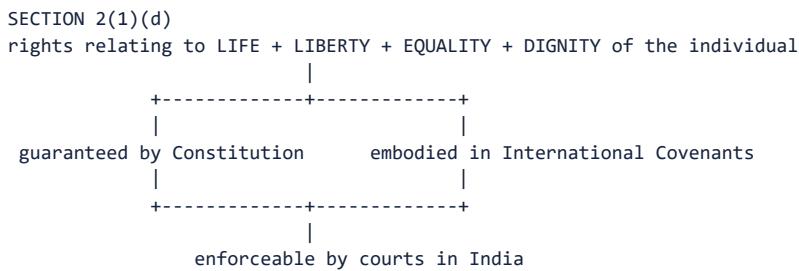
Use the origin-amendment rail to distinguish the original statute from later institutional redesign.

Recap

1993 title and deemed commencement -> 1994 assent -> 2006 procedural repair -> 2019 composition and tenure repair -> statutory, bounded watchdogs.

SESSION 2 - SECTION 2(1)(d): THE STATUTORY MEANING OF HUMAN RIGHTS

VISUAL FIRST



SECTION 2(1)(f): ICCPR + ICESCR + another UNGA covenant/convention
only when specified by Central Government notification

Definition

For the PHRA, human rights are rights relating to life, liberty, equality and dignity of the individual that are constitutionally guaranteed or embodied in the defined International Covenants and enforceable by courts in India.

Answer-grabbing line

Section 2(1)(d) is an enforceability-filtered statutory definition, not an unlimited catalogue of every moral or international aspiration.

Must-write keywords

section 2(1)(d); life; liberty; equality; dignity; enforceable by courts in India; section 2(1)(f); ICCPR; ICESCR

Claim -> named evidence -> analysis -> qualification

- **Claim:** The statutory field is broad in values but legally bounded in enforceability.
- **Named evidence:** Sections 2(1)(d) and 2(1)(f) connect constitutional guarantees with the ICCPR, ICESCR and any additionally notified UN General Assembly covenant or convention.
- **Analysis:** The definition allows domestic inquiry to engage civil-political and socio-economic dimensions while preserving a judicial-enforceability gate.
- **Qualification:** A treaty reference does not by itself make every treaty norm directly enforceable or every private dispute an NHRC complaint.

Evidence and explanation

[FACT] ICCPR means the International Covenant on Civil and Political Rights; ICESCR means the International Covenant on Economic, Social and Cultural Rights. Both were adopted by the UN General Assembly on 16 December 1966.

[FACT] Section 12(f) separately empowers NHRC to study treaties and other international instruments and recommend effective implementation.

[ANALYSIS] Dignity links the PHRA to constitutional rights jurisprudence, but jurisdiction still depends on the Act's complaint, public-servant, subject-matter and time rules.

[LIMIT] Purely private wrongdoing ordinarily requires a public-servant violation, abetment or negligence-in-prevention nexus under section 12(a), or another competent legal forum.

Evidence checkpoint

Use **Sections 2(1)(d) and 2(1)(f) connect constitutional guarantees with the ICCPR, ICESCR and any additionally notified UN General Assembly covenant or convention.** to prove the claim, explain the institutional mechanism, and close with this limit: **A treaty reference does not by itself make every treaty norm directly enforceable or every private dispute an NHRC complaint.**

Prelims trap

Do not omit 'enforceable by courts in India' or claim that the Universal Declaration of Human Rights alone is the statutory definition.

Mains use

Open a rights answer with section 2(1)(d), then test forum, respondent, time and remedy.

Recap

Values -> legal source -> enforceability -> public-authority nexus -> statutory forum.

SESSION 3 - SECTION 3: NHRC COMPOSITION AND DEEMED-MEMBER BOUNDARY

VISUAL FIRST

NHRC UNDER SECTION 3

Chairperson: has been CJI or Judge of Supreme Court

```
|
+-- 1 member: is/has been Judge of Supreme Court
+-- 1 member: is/has been Chief Justice of High Court
+-- 3 experts: human-rights knowledge/practical experience
|             at least 1 woman
+-- 7 deemed members ONLY for section 12(b)-(j)
    NCM | NCSC | NCST | NCW | NCBC | NCPCR | CCPD
```

CJI = Chief Justice of India | NCM = National Commission for Minorities

CCPD = Chief Commissioner for Persons with Disabilities

Definition

NHRC combines a judicially qualified Chairperson and judicial members with three human-rights experts, while seven specialised office-holders are deemed members for a limited set of functions.

Answer-grabbing line

The 2019 design broadened eligibility and pluralised the expert category, but deemed membership is functional integration, not institutional merger.

Must-write keywords

section 3; former CJI or former Supreme Court Judge; three experts; at least one woman; seven deemed members; section 12(b)-(j)

Claim -> named evidence -> analysis -> qualification

- **Claim:** NHRC's ordinary composition and its deemed-member layer must be counted separately.
- **Named evidence:** Section 3(2) creates the Chairperson plus five ordinary members; section 3(3) deems seven named office-holders to be members for section 12(b)-(j).
- **Analysis:** The arrangement brings specialised perspectives into intervention, visits, review, research, literacy and promotional work.
- **Qualification:** The deemed members are not ordinary full-time NHRC members and, by that status alone, do not join section 12(a) complaint inquiry.

Evidence and explanation

[FACT] The seven offices are the Chairpersons of the National Commission for Backward Classes, National Commission for Minorities, National Commission for Protection of Child Rights, National Commission for Scheduled Castes, National Commission for Scheduled Tribes and National Commission for Women, plus the Chief Commissioner for Persons with Disabilities.

[FACT] The statutory phrase is section 12(b) to (j). Section 12(a), the complaint-inquiry function, is outside that deemed-member formula.

[FACT] The Secretary-General is NHRC's Chief Executive Officer and, subject to the Chairperson's control, exercises administrative and financial powers except judicial functions and regulation-making under section 40B. NHRC's statutory headquarters is Delhi, with other offices requiring prior Central Government approval.

[LIMIT] Current occupants and vacancies are notification-sensitive and are deliberately omitted.

Evidence checkpoint

Use **Section 3(2)** creates the Chairperson plus five ordinary members; **section 3(3)** deems seven named office-holders to be members for **section 12(b)-(j)**. to prove the claim, explain the institutional mechanism, and close with this limit: **The deemed members are not ordinary full-time NHRC members and, by that status alone, do not join section 12(a) complaint inquiry.**

Prelims trap

Do not write section 12(c)-(j), count seven deemed members as ordinary members, or say that specialised commissions were merged into NHRC.

Mains use

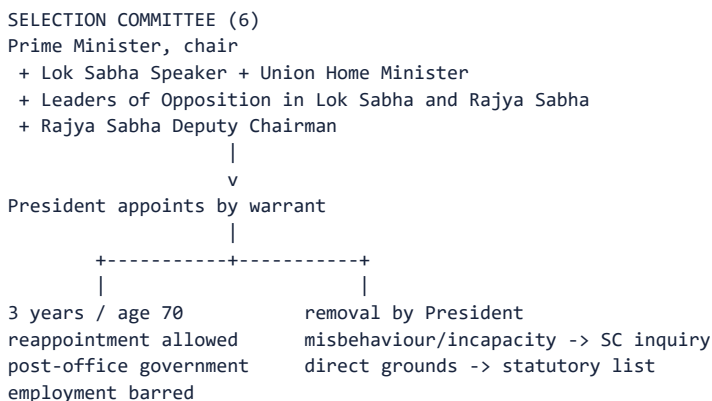
Use composition to evaluate expertise, pluralism and coordination without overstating integration.

Recap

Chair + five ordinary members; seven limited-purpose deemed members; categories, not incumbents.

SESSION 4 - SECTIONS 4-7: APPOINTMENT, RESIGNATION, REMOVAL AND TENURE

VISUAL FIRST



Definition

NHRC appointments are presidential appointments based on a six-member political-legislative committee, while removal is centrally controlled and partly protected by a Supreme Court inquiry.

Answer-grabbing line

NHRC independence rests less on the appointing authority's title than on eligibility, collective recommendation, fixed tenure, protected removal and transparent practice.

Must-write keywords

section 4; President; warrant; six-member committee; section 5; Supreme Court inquiry; section 6; three years; age seventy; reappointment; section 7

Claim -> named evidence -> analysis -> qualification

- **Claim:** The Act combines executive-led selection with tenure and removal safeguards.
- **Named evidence:** Sections 4-7 specify the recommendation committee, presidential appointment, resignation, two-track removal, tenure, reappointment, post-tenure employment bar and acting-Chairperson arrangements.
- **Analysis:** A Supreme Court inquiry protects against arbitrary removal for proved misbehaviour or incapacity, while listed objective grounds permit direct presidential removal.
- **Qualification:** A committee vacancy does not by itself invalidate an appointment; that rule does not immunise illegality, bias or constitutional infirmity from judicial review.

Evidence and explanation

[FACT] Direct-removal grounds include adjudged insolvency; paid employment outside official duties; infirmity of mind or body; unsoundness of mind declared by a competent court; and conviction plus imprisonment for an offence which, in the President's opinion, involves moral turpitude.

[FACT] The Chairperson and members hold office for three years, subject to the age ceiling of seventy; reappointment is permitted. The Act states no fixed numerical cap on reappointments, but the age ceiling remains.

[FACT] Under section 7, the President may authorise a member to act as Chairperson during a vacancy or inability.

[LIMIT] Do not equate eligibility with automatic appointment, or fixed tenure with constitutional security.

Evidence checkpoint

Use **Sections 4-7 specify the recommendation committee, presidential appointment, resignation, two-track removal, tenure, reappointment, post-tenure employment bar and acting-Chairperson arrangements.** to prove the claim, explain the institutional mechanism, and close with this limit: **A committee vacancy does not by itself invalidate an appointment; that rule does not immunise illegality, bias or constitutional infirmity from judicial review.**

Prelims trap

The Chief Justice of India is consulted for specified sitting judicial appointees but is not a member of the six-person selection committee.

Mains use

Use the design to discuss independence: safeguards are real, but selection transparency and reappointment incentives remain evaluative issues.

Recap

Committee recommendation -> presidential warrant -> three years/70 -> reappointment possible -> protected and direct removal tracks.

SESSION 5 - SECTION 12: FUNCTIONS, ENTRY ROUTES AND PROMOTIONAL MANDATE

VISUAL FIRST

SECTION 12 FUNCTION MAP

- (a) inquire: suo motu / victim petition / representative / court direction
violation or abetment OR public-servant negligence in prevention
- (b) intervene in pending court proceeding WITH court approval
- (c) visit jail or other State-controlled treatment/reformation/protection institution
- (d) review constitutional/legal safeguards
- (e) review inhibiting factors, including terrorism
- (f) study treaties/instruments
- (g) research (h) literacy (i) encourage NGOs (j) other promotion functions

Definition

Section 12 gives NHRC a combined protection and promotion mandate: complaint inquiry, institutional scrutiny, legal review, research, education and civil-society support.

Answer-grabbing line

NHRC is not merely a complaint desk; its preventive and promotional functions address the systems that produce rights violations.

Must-write keywords

section 12(a)-(j); suo motu; court direction; negligence in prevention; court approval; institutional visit; safeguards review; research; literacy; NGOs

Claim -> named evidence -> analysis -> qualification

- **Claim:** The mandate spans individual complaints and structural prevention.

- **Named evidence:** Section 12 lists ten function clusters, including the 2006-added direction-or-order-of-any-court route in clause (a).
- **Analysis:** Complaint findings can expose individual wrongdoing, while visits, safeguard review, research and literacy can alter recurring institutional conditions.
- **Qualification:** Court intervention under section 12(b) requires the court's approval; an institution visit is not itself prosecution, closure or management takeover.

Evidence and explanation

[FACT] Clause (a) covers violation, abetment and negligence in prevention by a public servant.

[FACT] Clause (c) permits visits notwithstanding other law to a jail or other State-controlled institution where persons are detained or lodged for treatment, reformation or protection.

[FACT] Clause (e) includes acts of terrorism among factors inhibiting enjoyment of human rights.

[LIMIT] Section 12(f)'s international-instrument study function is omitted when section 12 is applied to SHRCs by section 29.

Evidence checkpoint

Use **Section 12 lists ten function clusters, including the 2006-added direction-or-order-of-any-court route in clause (a).** to prove the claim, explain the institutional mechanism, and close with this limit: **Court intervention under section 12(b) requires the court's approval; an institution visit is not itself prosecution, closure or management takeover.**

Prelims trap

Do not say NHRC may intervene in any court case without permission or inquire into every private wrong.

Mains use

Organise a functions answer into protection, prevention, promotion and coordination.

Recap

Complaint inquiry + court assistance + institution scrutiny + safeguard review + knowledge and literacy.

SESSION 6 - SECTION 13 AND SECTIONS 15-16: EVIDENCE POWER WITH PROCEDURAL FAIRNESS

VISUAL FIRST

INQUIRY POWER

summon/attendance/oath -> documents -> affidavits -> public records -> commissions

|

+++ require legally relevant information, subject to privilege

+++ authorised entry/search/seizure of relevant documents

+++ specified proceedings deemed judicial

--- offences in Commission's view/presence may be recorded and sent to Magistrate

FAIRNESS

section 15: protected statements, except false-evidence prosecution

section 16: hearing + defence evidence if conduct/reputation may be harmed

Definition

Section 13 supplies civil-court-style evidence powers for inquiry, while sections 15 and 16 protect witnesses and persons who may be adversely affected.

Answer-grabbing line

Civil-court powers strengthen fact-finding; they do not give NHRC a general civil decree, criminal sentence or contempt jurisdiction.

Must-write keywords

section 13; summon; oath; discovery; affidavits; public record; commission; entry and seizure; deemed civil court; section 15; section 16; natural justice

Claim -> named evidence -> analysis -> qualification

- **Claim:** NHRC can compel and preserve evidence within the statutory inquiry.
- **Named evidence:** Section 13 enumerates civil-court powers and limited deemed-court consequences; section 16 requires a reasonable hearing where conduct or reputation may be prejudicially affected.
- **Analysis:** These provisions improve evidentiary reliability and fairness, making recommendations more credible before government, legislatures and courts.
- **Qualification:** Deemed-court language is purpose-specific; NHRC does not acquire ordinary judicial jurisdiction or power to punish contempt generally.

Evidence and explanation

[FACT] Section 13(3) permits an authorised gazetted officer to enter a building or place and seize, copy or extract a relevant document, subject to the applicable section 100 CrPC safeguards.

[FACT] Section 13(4) permits the Commission to record specified offences committed in its view or presence and forward the matter to a competent Magistrate.

[FACT] Section 13(5) deems proceedings judicial for specified Penal Code purposes and treats the Commission as a civil court for specified CrPC purposes.

[LIMIT] A recommendation based on strong evidence remains a recommendation unless another law or court supplies binding effect.

Evidence checkpoint

Use **Section 13 enumerates civil-court powers and limited deemed-court consequences; section 16 requires a reasonable hearing where conduct or reputation may be prejudicially affected.** to prove the claim, explain the institutional mechanism, and close with this limit: **Deemed-court language is purpose-specific; NHRC does not acquire ordinary judicial jurisdiction or power to punish contempt generally.**

Prelims trap

Do not infer a power to convict, execute compensation, strike down law or punish every non-compliance as contempt.

Mains use

Use section 13 to rebut 'mere advisory discussion body', then use section 18 to show the remedial ceiling.

Recap

Strong evidence tools + hearing rights -> credible findings; no general adjudication.

SESSION 7 - SECTIONS 11, 14 AND 17: STAFF, INVESTIGATION AND INQUIRY GATEWAY

VISUAL FIRST

COMPLAINT / MATERIAL

|

v

SECTION 17: call for report/information

| no timely report -> own inquiry may proceed

| adequate action/no inquiry needed -> close + inform complainant

| nature requires -> initiate inquiry

|

v

SECTION 14: use Central/State officer or agency WITH government concurrence

-> Commission direction/control -> agency report -> Commission verifies facts

SECTION 11: government-provided Secretary-General and police/investigative staff

Definition

The PHRA combines a report-first screening route with power to investigate directly or through government officers and agencies whose findings the Commission must independently assess.

Answer-grabbing line

Delegated investigation can extend capacity, but section 14(5) makes the Commission responsible for testing the report rather than rubber-stamping it.

Must-write keywords

section 11; government-provided staff; section 14; concurrence; direction and control; verify report; section 17; information report; own inquiry

Claim -> named evidence -> analysis -> qualification

- **Claim:** Investigation support is legally supervised but institutionally dependent.
- **Named evidence:** Sections 11 and 14 provide staff and agency support; section 17 regulates the first response to complaints.
- **Analysis:** The Commission may proceed when a report is delayed or inadequate and may examine the investigators who prepared an agency report.
- **Qualification:** Dependence on government and police personnel can create perceived or real conflicts where the same machinery is under scrutiny; that is a design criticism, not proof that every inquiry is biased.

Evidence and explanation

[FACT] An agency used under section 14 may summon persons, require documents and requisition public records under Commission direction and control.

[FACT] It must report within the period specified by the Commission, which then satisfies itself about facts and conclusions.

[ANALYSIS] An independent multidisciplinary investigation cadre would reduce conflict risk in custodial, police and institutional-abuse cases.

[LIMIT] Section 37 special investigation teams are government-constituted teams for investigation and prosecution; they are not the same as an inherent NHRC investigation wing.

Evidence checkpoint

Use **Sections 11 and 14 provide staff and agency support; section 17 regulates the first response to complaints.** to prove the claim, explain the institutional mechanism, and close with this limit: **Dependence on government and police personnel can create perceived or real conflicts where the same machinery is under scrutiny; that is a design criticism, not proof that every inquiry is biased.**

Prelims trap

Do not say NHRC can requisition any agency without concurrence, or that an agency report automatically becomes the Commission's finding.

Mains use

Pair legal capacity with the investigator-independence critique and a proportionate reform.

Recap

Report screen -> supervised investigation -> Commission verification -> fair finding.

SESSION 8 - SECTION 18: WHAT THE COMMISSION MAY DO DURING AND AFTER INQUIRY

VISUAL FIRST

FINDING OF VIOLATION / ABETMENT / PREVENTION-NEGLIGENCE BY PUBLIC SERVANT

- |
- +++ recommend compensation or damages
- +++ recommend prosecution or other suitable action
- +++ recommend further action
- +++ approach Supreme Court / High Court for directions, orders or writs
- +++ recommend immediate interim relief at any inquiry stage
- send report + recommendations -> government/authority comments in 1 month
 - > publish report, response and proposed/taken action

KEY: RECOMMEND / APPROACH / PUBLISH != DECREE / CONVICT / EXECUTE

Definition

Section 18 converts an inquiry finding into recommendations, court approach, interim-relief advice and public follow-up; it does not create self-executing adjudication.

Answer-grabbing line

The Commission has remedial leverage through evidence, publicity and access to constitutional courts, but coercive legal force comes from government action, prosecution or judicial orders.

Must-write keywords

section 18; recommend compensation; recommend prosecution; immediate interim relief; approach Supreme Court or High Court; one month; publish

Claim -> named evidence -> analysis -> qualification

- **Claim:** NHRC can recommend a remedy and activate institutions that possess binding power.
- **Named evidence:** Section 18(a)-(f) precisely separates recommended executive action, judicial approach, interim relief and publication.
- **Analysis:** Publication and reason-giving create reputational and legislative accountability even where the executive does not accept every recommendation.
- **Qualification:** The government must send comments, including action taken or proposed, but the Act does not make acceptance automatic or turn the recommendation into an executable compensation decree.

Evidence and explanation

[FACT] Compensation or damages, prosecution, further action and interim relief are all framed as recommendations.

[FACT] The Commission itself may approach the Supreme Court or concerned High Court for whatever directions, orders or writs that court considers necessary.

[FACT] The ordinary response period is one month or further time allowed by the Commission.

[LIMIT] Interim relief is also recommendatory. Criminal guilt requires the competent investigative, prosecutorial and judicial process.

Evidence checkpoint

Use **Section 18(a)-(f) precisely separates recommended executive action, judicial approach, interim relief and publication.** to prove the claim, explain the institutional mechanism, and close with this limit: **The government must send comments, including action taken or proposed, but the Act does not make acceptance automatic or turn the recommendation into an executable compensation decree.**

Prelims trap

Words matter: 'recommend compensation' is not 'award compensation'; 'recommend prosecution' is not 'convict'.

Mains use

Use section 18 as the central explanation of both NHRC's value and its 'recommendatory nature' limitation.

Recap

Finding -> recommendation/court route -> official response -> publication; not binding adjudication.

SESSION 9 - SECTION 19: THE SPECIAL ARMED-FORCES PROCEDURE

VISUAL FIRST

```
COMPLAINT OF VIOLATION BY MEMBER OF ARMED FORCES
armed forces = naval + military + air + other armed forces of Union
|
v
NHRC: own motion or petition -> SEEK REPORT FROM CENTRAL GOVERNMENT
|
+-- do not proceed further
|-- make recommendations to Central Government
    |
    action report within 3 months or allowed further time
    |
    NHRC publishes report + recommendation + government action
```

ORDINARY SECTION 17-18 DIRECT INQUIRY TRACK IS DISPLACED

Definition

Section 19 creates a special report-based route for complaints against members of the armed forces instead of the ordinary direct inquiry procedure.

Answer-grabbing line

The armed-forces clause limits method, not the existence of human-rights standards: NHRC may seek a report, recommend and publish, but cannot use the ordinary direct-investigation track.

Must-write keywords

section 19; armed forces of the Union; Central Government report; three months; recommendation; publication; special procedure

Claim -> named evidence -> analysis -> qualification

- **Claim:** Armed-forces complaints receive a narrower statutory process.
- **Named evidence:** Section 2(1)(a) defines armed forces; section 19 prescribes the report-recommend-publish sequence.
- **Analysis:** The procedure preserves public scrutiny but places primary fact supply with the Central Government, weakening independent verification in sensitive cases.
- **Qualification:** State police are not automatically 'armed forces' under this definition, and section 19 does not declare armed-forces conduct immune from constitutional or criminal law.

Evidence and explanation

[FACT] The Commission may act on its own motion or on a petition, but the next statutory step is to seek a Central Government report.

[FACT] The Central Government ordinarily has three months, unlike the one-month ordinary section 18 follow-up period.

[ANALYSIS] Reform may provide safeguarded independent fact-finding, witness protection and security-sensitive handling without treating operational secrecy as blanket immunity.

[LIMIT] Such wider inquiry power is a proposal; it is not current law.

Evidence checkpoint

Use **Section 2(1)(a)** defines armed forces; **section 19** prescribes the report-recommend-publish sequence. to prove the claim, explain the institutional mechanism, and close with this limit: **State police are not automatically 'armed forces' under this definition, and section 19 does not declare armed-forces conduct immune from constitutional or criminal law.**

Prelims trap

Do not say NHRC directly investigates armed-forces complaints under the ordinary section 14 route.

Mains use

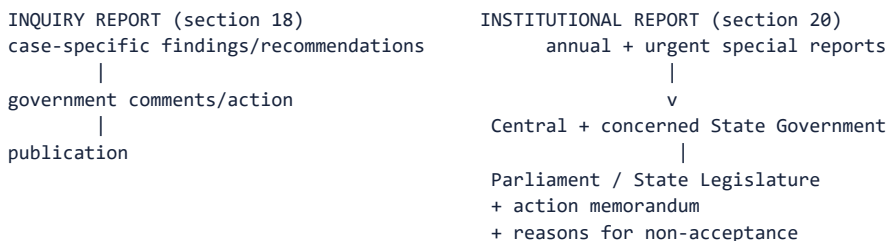
Use section 19 as a precise structural limitation, then acknowledge security and evidence-protection concerns.

Recap

Central report -> recommendation -> three-month response -> publication; narrower than ordinary inquiry.

SESSION 10 - SECTION 20: REPORTS, LEGISLATIVE ACCOUNTABILITY AND FOLLOW-UP

VISUAL FIRST



PUBLICITY -> LEGISLATIVE SCRUTINY -> ADMINISTRATIVE FOLLOW-UP

Definition

Section 20 makes annual and special reports part of a democratic accountability chain by requiring governmental laying and an action memorandum.

Answer-grabbing line

A recommendatory institution gains practical force when reports are timely, public, reasoned and examined by legislatures.

Must-write keywords

section 20; annual report; special report; urgency; Parliament; State Legislature; action-taken memorandum; reasons for non-acceptance

Claim -> named evidence -> analysis -> qualification

- **Claim:** Reporting converts individual and thematic findings into institutional accountability.
- **Named evidence:** Section 20 requires NHRC reports to be submitted to the Central Government and concerned State Government and laid before the appropriate legislature with action and non-acceptance reasons.
- **Analysis:** Legislative visibility can pressure compliance, reveal recurring patterns and support policy correction.
- **Qualification:** Laying a report does not itself implement compensation, prosecute an offender or guarantee committee scrutiny.

Evidence and explanation

[FACT] Special reports may be submitted when urgency or importance makes waiting for the annual report inappropriate.

[FACT] Section 28 creates the parallel State Commission reporting route to the State Government and State Legislature.

[ANALYSIS] Delay between report completion, laying, debate and departmental response can dilute this accountability mechanism.

[LIMIT] Reform should specify timely laying, recommendation-wise responses and follow-up dashboards without converting a Commission into the final adjudicator.

Evidence checkpoint

Use **Section 20** requires NHRC reports to be submitted to the Central Government and concerned State Government and laid before the appropriate legislature with action and non-acceptance reasons. to prove the claim, explain the institutional mechanism, and close with this limit: **Laying a report does not itself implement compensation, prosecute an offender or guarantee committee scrutiny.**

Prelims trap

Do not confuse an action-taken memorandum with mandatory acceptance or a judicial execution process.

Mains use

Use reports as the bridge between individual redress, systemic learning and legislative oversight.

Recap

Findings become public reasons; public reasons enable oversight; oversight still needs executive and legislative action.

SESSION 11 - SECTION 21: SHRC COMPOSITION, FEDERAL SCOPE AND UNION TERRITORIES

VISUAL FIRST

STATE MAY CONSTITUTE SHRC

Chairperson: has been Chief Justice OR Judge of High Court

- + 1 judicial member: is/has been HC Judge OR District Judge
with minimum 7 years' experience as District Judge
- + 1 human-rights expert

JURISDICTION: matters relatable to LIST II + LIST III

NO SHRC INQUIRY if NHRC or another lawful commission already inquiring

2+ States may share Chairperson/member with consent and committee process

UTs other than Delhi: functions may be conferred on SHRC by Central order

Delhi: NHRC deals with human-rights functions

Definition

An SHRC is a State-constituted statutory commission with a smaller composition and a subject-matter boundary tied to State List and Concurrent List entries.

Answer-grabbing line

SHRC jurisdiction follows the federal distribution of legislative subjects, not merely the physical location of an alleged violation.

Must-write keywords

section 21; State may constitute; High Court Chief Justice or Judge; District Judge seven years; List II; List III; duplication proviso; common Chairperson; Union territories; Delhi

Claim -> named evidence -> analysis -> qualification

- **Claim:** SHRC is a territorially situated but legally subject-matter-bounded rights institution.
- **Named evidence:** Section 21(2) defines composition; section 21(5) creates the List II/List III boundary and its anti-duplication proviso; subsections (6)-(8) address shared appointments and Union territories.
- **Analysis:** The design decentralises access while preventing State commissions from assuming Union-list or already-seized matters.

- **Qualification:** Concurrent-list scope does not exclude NHRC; it permits SHRC inquiry unless NHRC or another duly constituted commission is already inquiring into that matter.

Evidence and explanation

[FACT] A State Government 'may' constitute an SHRC; constitution is enabling rather than automatic.

[FACT] The Chairperson qualification was widened in 2019 from a former High Court Chief Justice to a person who has been a High Court Chief Justice or Judge.

[FACT] Delhi's human-rights functions are dealt with by NHRC; for other Union territories the Central Government may confer functions on a State Commission by order.

[LIMIT] Do not freeze a national count of functioning SHRCs; constitution, vacancies and operational capacity change.

Evidence checkpoint

Use **Section 21(2) defines composition; section 21(5) creates the List II/List III boundary and its anti-duplication proviso; subsections (6)-(8) address shared appointments and Union territories.** to prove the claim, explain the institutional mechanism, and close with this limit: **Concurrent-list scope does not exclude NHRC; it permits SHRC inquiry unless NHRC or another duly constituted commission is already inquiring into that matter.**

Prelims trap

Do not say SHRC may investigate Union List matters or that NHRC is excluded from every Concurrent List matter.

Mains use

Use the subject-matter test to explain cooperative federal access plus an anti-duplication rule.

Recap

State-created -> smaller membership -> List II/III -> already-inquired bar -> special UT arrangements.

SESSION 12 - SECTIONS 22-29: SHRC APPOINTMENT, REMOVAL, TENURE, STAFF AND ADAPTED FUNCTIONS

VISUAL FIRST

STATE SELECTION

Chief Minister, chair + Assembly Speaker + State Home Minister + Assembly LoP

if bicameral: Council Chairman + Council LoP

|
Governor appoints by warrant

|
resignation -> Governor removal -> PRESIDENT

misbehaviour/incapacity -> Supreme Court inquiry

term -> 3 years; age ceiling 70; reappointment; post-State/Union employment bar

SECTION 29 APPLIES 9,10,12-18 WITH MODIFICATIONS

notably: section 12(f) treaty-study function omitted

Definition

The Governor appoints SHRC leadership on a State committee's recommendation, but the President alone removes under the PHRA; sections 24-29 largely mirror NHRC safeguards and procedure.

Answer-grabbing line

The appointing-removing asymmetry limits direct State-executive control over a commission that may investigate State authorities.

Must-write keywords

sections 22-29; Governor; Chief Minister; bicameral committee; President removes; Supreme Court inquiry; three years; age seventy; section 27 staff; section 28 reports; section 29; clause 12(f) omitted

Claim -> named evidence -> analysis -> qualification

- **Claim:** SHRC design localises appointment and administration while centralising removal protection.

- **Named evidence:** Sections 22-26 regulate appointment, resignation, removal, tenure, acting arrangements and service conditions; sections 27-29 regulate staff, reports and applied NHRC procedure.
- **Analysis:** The President-only removal route can protect tenure from immediate State retaliation, while State-provided staff and finance still create operational dependence.
- **Qualification:** This structure does not make SHRC a Union body or give the President day-to-day control.

Evidence and explanation

[FACT] A sitting High Court Judge or sitting District Judge appointment requires consultation with the Chief Justice of the concerned High Court.

[FACT] Resignation is addressed to the Governor, although removal is by the President.

[FACT] A vacancy in the State selection committee does not by itself invalidate an appointment. Under section 25, the Governor may authorise a member to act as Chairperson during vacancy or inability.

[FACT] Section 26 leaves salaries, allowances and service conditions to State rules but bars disadvantageous variation after appointment.

[FACT] Section 27 requires State-provided Secretary-rank and police/investigative staff; section 28 requires legislative laying with action and non-acceptance reasons.

[FACT] Section 29 omits section 12(f), the treaty and international-instrument study function, for SHRCs.

[LIMIT] The same three-year/age-seventy and post-office employment rules apply, but individual appointment dates and vacancies are volatile.

Evidence checkpoint

Use **Sections 22-26 regulate appointment, resignation, removal, tenure, acting arrangements and service conditions; sections 27-29 regulate staff, reports and applied NHRC procedure.** to prove the claim, explain the institutional mechanism, and close with this limit: **This structure does not make SHRC a Union body or give the President day-to-day control.**

Prelims trap

The most common trap is 'Governor appoints, therefore Governor removes'; the Act says President removes.

Mains use

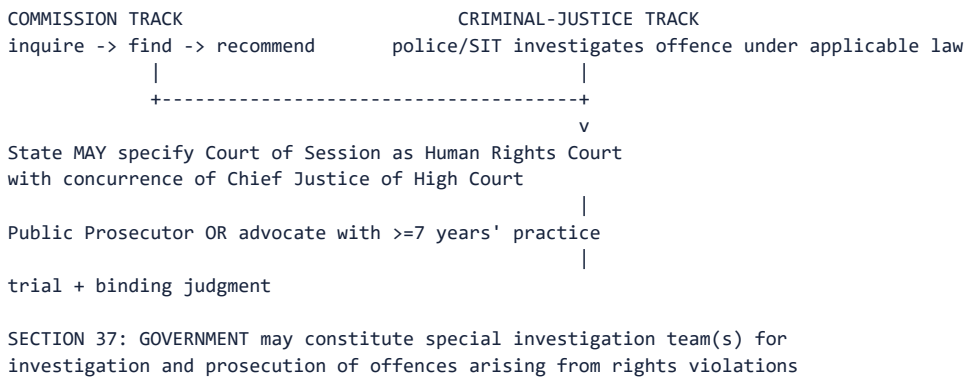
Use the asymmetry to evaluate both independence and administrative complexity.

Recap

State committee -> Governor appoints -> President removes -> adapted NHRC procedure -> treaty-study omission.

SESSION 13 - SECTIONS 30-31 AND 37: COURTS, PROSECUTORS AND SPECIAL INVESTIGATION TEAMS

VISUAL FIRST



Definition

Human Rights Courts and Special Public Prosecutors provide a possible trial channel, while section 37 allows government-constituted special investigation teams; neither provision turns NHRC findings into automatic convictions.

Answer-grabbing line

The PHRA deliberately separates Commission fact-finding from investigation, prosecution and judicial adjudication.

Must-write keywords

section 30; Court of Session; speedy trial; concurrence of Chief Justice of High Court; section 31; seven years; Special Public Prosecutor; section 37; special investigation team

Claim -> named evidence -> analysis -> qualification

- **Claim:** The enforcement chain requires legally distinct institutions.
- **Named evidence:** Sections 30 and 31 provide an enabling court-and-prosecutor architecture; section 37 permits government SITs for investigation and prosecution.
- **Analysis:** A Commission report can trigger or inform action, but police, prosecutor and court must operate under applicable substantive and procedural law.
- **Qualification:** The PHRA does not itself create a complete catalogue of standalone human-rights offences, and court notification does not guarantee a dedicated docket or effective prosecution.

Evidence and explanation

[FACT] Section 30 uses 'may' and contains exceptions where a Sessions Court is already specified as a Special Court or another Special Court already exists for those offences.

[FACT] Section 31 requires a Public Prosecutor or an advocate with at least seven years' practice.

[FACT] Section 37 gives the constituting power to 'the Government', not to NHRC as an independent statutory power.

[ANALYSIS] Effective operation needs offence mapping, trained prosecutors, referral protocols, witness support and case tracking.

[LIMIT] A recommendation for prosecution is neither a charge-sheet nor proof beyond reasonable doubt.

Evidence checkpoint

Use **Sections 30 and 31 provide an enabling court-and-prosecutor architecture; section 37 permits government SITs for investigation and prosecution.** to prove the claim, explain the institutional mechanism, and close with this limit: **The PHRA does not itself create a complete catalogue of standalone human-rights offences, and court notification does not guarantee a dedicated docket or effective prosecution.**

Prelims trap

Do not say every district automatically has an operational Human Rights Court or that the court tries a new generic offence called 'human-rights violation'.

Mains use

Use the institutional chain to explain why stronger follow-up need not convert NHRC into a criminal court.

Recap

Commission finds/recommends -> investigation -> prosecution -> Sessions Court adjudicates.

SESSION 14 - SECTION 36, DUPLICATION BARS AND RELATION WITH OTHER FORUMS

VISUAL FIRST

JURISDICTION SCREEN

1. Is the complaint within section 2(1)(d)?
2. section 12(a): public-servant violation/abetment/negligence nexus?
3. time: within 1 year of alleged violative act? [section 36(2)]
4. overlap:
 - NHRC -> section 36(1): pending before SHRC/other lawful commission = no inquiry
 - SHRC -> section 21(5): NHRC/other lawful commission already inquiring = no inquiry
5. armed forces? -> section 19 special route
6. court pending? -> intervention only with court approval; court remedies remain independent

Definition

The PHRA uses time, overlap, subject-matter and procedure screens to prevent unlimited or duplicative Commission jurisdiction.

Answer-grabbing line

Human-rights seriousness does not erase statutory jurisdiction; the correct answer identifies the bar and then points to any independent judicial or criminal-law remedy.

Must-write keywords

section 36(1); pending before State Commission; other duly constituted commission; section 36(2); one year; section 21(5); section 12(b); judicial review

Claim -> named evidence -> analysis -> qualification

- **Claim:** Jurisdiction is a threshold question, not an afterthought.
- **Named evidence:** Section 36(1) binds NHRC on matters pending before an SHRC or another lawful commission; section 36(2) binds NHRC and SHRC after one year from the alleged act.
- **Analysis:** The bars reduce conflicting inquiries and stale evidence, but may exclude delayed victims and complex institutional abuse.
- **Qualification:** The one-year rule governs Commission inquiry, not every constitutional, criminal, civil or specialised statutory remedy; availability of another remedy depends on its own law and facts.

Evidence and explanation

[FACT] Section 13(6)-(7) allows NHRC to transfer a complaint to a competent SHRC where the State Commission has jurisdiction.

[FACT] NCSC, NCST and NCBC possess constitutional mandates under Articles 338, 338A and 338B; NCM, NCW and NCPCR have separate statutory mandates.

[ANALYSIS] A reasoned referral protocol should identify the dominant legal issue, preserve limitation dates, share only lawful information and avoid parallel findings.

[LIMIT] Neither section 36(1) nor section 21(5) authorises NHRC to absorb another commission's mandate or hear the same matter without the stated limits.

Evidence checkpoint

Use **Section 36(1) binds NHRC on matters pending before an SHRC or another lawful commission; section 36(2) binds NHRC and SHRC after one year from the alleged act.** to prove the claim, explain the institutional mechanism, and close with this limit: **The one-year rule governs Commission inquiry, not every constitutional, criminal, civil or specialised statutory remedy; availability of another remedy depends on its own law and facts.**

Prelims trap

Do not say section 36(1) is the one-year bar: duplication is subsection (1); time is subsection (2).

Mains use

Use a jurisdiction-screen diagram before discussing merits or reforms.

Recap

Definition -> respondent nexus -> time -> overlap -> special procedure -> remedy route.

SESSION 15 - CONTROLLING CASE LAW: PARAMJIT KAUR, N.C. DHOUNDIAL AND EEVFAM

VISUAL FIRST

ORDINARY NHRC ACTION

PHRA powers + PHRA limits

|
`-- N.C. Dhoundial (2003):
 section 36(2) jurisdictional; continuing effects do not automatically
 turn a completed act into a continuing wrong

SUPREME COURT ARTICLE 32 REFERENCE

|
`-- Paramjit Kaur (1999), clarified in Dhoundial:
 NHRC acts as Court's expert body; section 36(2) does not control that
 court-assigned constitutional role

EEVFAM (2016)

alleged extra-judicial executions -> no absolute immunity for excessive force
-> credible, thorough investigation + truth/accountability; NHRC material is relevant,
 but constitutional-court supervision and criminal process remain distinct

Definition

The cases distinguish ordinary statutory jurisdiction from a Supreme Court-assigned expert role and place serious State-force allegations within constitutional accountability.

Answer-grabbing line

Case law does not give NHRC unlimited power; it explains when the Commission is bound by the Act and when it assists the Supreme Court under Article 32.

Must-write keywords

Paramjit Kaur v State of Punjab (1999); N.C. Dhoundial v Union of India (2003); section 36(2); expert body; Article 32; EEVFAM v Union of India (2016); excessive force

Claim -> named evidence -> analysis -> qualification

- **Claim:** The source of the Commission's authority determines the applicable limit.
- **Named evidence:** The Supreme Court's official judgment in N.C. Dhoundial expressly reiterates Paramjit Kaur and treats section 36(2) as a jurisdictional bar in ordinary statutory action.
- **Analysis:** This preserves statutory legality while allowing the Supreme Court to use specialist assistance in enforcing fundamental rights.
- **Qualification:** A court reference is exceptional and court-controlled; it does not let NHRC reopen every old case automatically or disregard the Act whenever a violation is grave.

Evidence and explanation

[FACT] In *N.C. Dhoundial v Union of India*, decided 11 December 2003, the Court held that the one-year period runs from the alleged violative act. Once illegal detention had ended, its continuing effects did not keep repeating the act.

[FACT] The judgment clarified that, under *Paramjit Kaur v State of Punjab* (1999) 2 SCC 131, NHRC acting under Supreme Court directions under Article 32 functions as the Court's expert body; section 36(2) then does not apply to that assigned role.

[FACT] In *Extra Judicial Execution Victim Families Association v Union of India* (2016), concerning alleged extra-judicial executions in Manipur, the Court rejected any general licence to use excessive or retaliatory force and required credible investigation and accountability. NHRC records formed part of the material, but the Court did not transform NHRC recommendations into binding criminal judgments.

[LIMIT] State the procedural posture and exact proposition; do not use these cases as slogans for unlimited Commission power.

Evidence checkpoint

Use **The Supreme Court's official judgment in N.C. Dhoundial expressly reiterates Paramjit Kaur and treats section 36(2) as a jurisdictional bar in ordinary statutory action.** to prove the claim, explain the institutional mechanism, and close with this limit: **A court reference is exceptional and court-controlled; it does not let NHRC reopen every old case automatically or disregard the Act whenever a violation is grave.**

Prelims trap

Do not cite Paramjit Kaur as abolishing the one-year bar, Dhoundial as barring courts, or EEVFAM as granting NHRC ordinary direct armed-forces investigation power.

Mains use

Use the three-case sequence to show statutory limit -> constitutional exception -> rights-accountability context.

Recap

Ordinary Act-bound role; exceptional Court-assigned expert role; constitutional demand for credible inquiry.

SESSION 16 - INSTITUTIONAL RELATIONS, STRENGTHS, LIMITATIONS AND REFORM

VISUAL FIRST

RIGHTS ACCOUNTABILITY NETWORK

NHRC/SHRC -> inquiry, recommendations, reports, prevention and promotion

COURTS -> writs, binding orders, review and trials

POLICE/SIT -> criminal investigation

PROSECUTORS -> conduct cases

NCSC/NCST/NCBC -> constitutional group safeguards

NCM/NCW/NCPCR/CCPD -> specialised statutory fields

GOVERNMENTS/LEGISLATURES -> implementation, reasons, law, budget, oversight

|
v

REFORM WITHOUT INSTITUTIONAL CONFUSION

open plural appointments + timely vacancies + independent investigation

+ reasoned response/follow-up + calibrated time-bar reform

+ safeguarded armed-forces fact-finding + operational court referrals

Definition

Human Rights Commissions are accessible fact-finding and norm-building institutions whose effectiveness depends on credible independence, specialist coordination and follow-through by bodies with binding authority.

Answer-grabbing line

The reform goal is not an unaccountable super-commission, but an independent watchdog whose evidence reliably activates government, legislatures, prosecutors and courts.

Must-write keywords

recommendatory body; accessibility; suo motu; public reports; independent investigation; pluralism; vacancies; one-year bar; armed-forces route; follow-up; coordination

Claim -> named evidence -> analysis -> qualification

- **Claim:** NHRC and SHRC add value by combining accessibility, investigation, publicity and systemic review.
- **Named evidence:** Sections 12-20 provide the functional base; Articles 32/226, criminal procedure and specialised commission mandates supply neighbouring authority.

- **Analysis:** The network works when each body respects its legal boundary and shares referrals, evidence and follow-up lawfully.
- **Qualification:** Binding every recommendation automatically could raise fairness and institutional-design concerns; stronger accountability may instead combine reasoned compliance duties, judicial escalation and transparent review.

Evidence and explanation

Strengths: accessible complaints; suo motu visibility; civil-court evidence powers; institutional visits; interim-relief, compensation and prosecution recommendations; public reports; research and literacy.

Structural limits: recommendations are non-self-executing; section 36(2) one-year bar; section 19 armed-forces report route; government-linked investigators; subject-matter and duplication bars.

Practical limits: vacancies; uneven SHRC capacity; delay; weak report follow-up; limited victim/witness support; uncertain Human Rights Court case flow.

Defensible reforms: publish vacancies and selection criteria; broaden plural expertise; create independent multidisciplinary investigation staff; require recommendation-wise acceptance or reasoned rejection within time; preserve judicial review; legislate calibrated exceptions/condonation for grave, concealed or demonstrably continuing violations; permit safeguarded independent fact-finding under section 19; strengthen prosecutor, court and referral protocols.

[LIMIT] Every reform beyond administration must be identified as a proposal requiring legislation or lawful executive action.

Evidence checkpoint

Use **Sections 12-20 provide the functional base; Articles 32/226, criminal procedure and specialised commission mandates supply neighbouring authority.** to prove the claim, explain the institutional mechanism, and close with this limit: **Binding every recommendation automatically could raise fairness and institutional-design concerns; stronger accountability may instead combine reasoned compliance duties, judicial escalation and transparent review.**

Prelims trap

Do not merge constitutional commissions into a statutory NHRC by assertion, or describe stronger recommendations as existing binding law.

Mains use

Use a balanced answer: contribution -> statutory/practical limits -> matched reforms -> qualified institutional verdict.

Recap

Accessible watchdog with strong fact-finding but bounded remedies; strengthen independence and follow-through, not fictional powers.

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every question has four substantive option-specific explanations and one unique question-specific examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Legal identity

Which description is legally correct?

A. NHRC is a statutory commission under the Protection of Human Rights Act, 1993. B. NHRC is a constitutional commission under Article 338. C. NHRC is a criminal court constituted under the Code of Criminal Procedure. D. NHRC is an informal body created only by executive resolution.

Answer: A.

Option-specific explanations:

- **A:** Section 3 requires the Central Government to constitute NHRC under the PHRA.
- **B:** Article 338 creates the National Commission for Scheduled Castes, not NHRC.

- **C:** Civil-court inquiry powers do not make NHRC a criminal court.
- **D:** The PHRA, not a bare Cabinet resolution, is the creating law.

Examiner trap 1: The adjective 'national' does not identify the legal source.

MCQ 2. Statutory definition

Section 2(1)(d) defines human rights by linking life, liberty, equality and dignity to rights that are

A. recognised by any civil-society organisation. B. constitutionally guaranteed or embodied in the defined International Covenants and enforceable by courts in India. C. found in every treaty signed by India, whether enforceable or not. D. available only to citizens under Part III.

Answer: B.

Option-specific explanations:

- **A:** NGO recognition cannot enlarge a statutory definition.
- **B:** This option preserves both legal sources and the enforceability requirement.
- **C:** Treaty signature alone does not satisfy the statutory notification and enforceability gates.
- **D:** The definition concerns the individual and is not confined to citizen-only rights.

Examiner trap 2: Omitting 'enforceable by courts in India' makes the definition overbroad.

MCQ 3. International Covenants

Which instruments are expressly named in section 2(1)(f)?

A. Only the Universal Declaration of Human Rights B. Every International Labour Organization convention C. The ICCPR and the ICESCR, plus another UN General Assembly covenant or convention if centrally notified D. Only treaties incorporated by a constitutional amendment

Answer: C.

Option-specific explanations:

- **A:** The UDHR is historically important but is not the pair expressly named in section 2(1)(f).
- **B:** ILO instruments are not automatically included as a class.
- **C:** The Act names both 1966 Covenants and creates a notification route for another UNGA instrument.
- **D:** A constitutional amendment is not the statutory notification mechanism.

Examiner trap 3: Separate an instrument's moral importance from its inclusion in the Act's definition.

MCQ 4. Deemed members

The seven deemed members of NHRC participate by virtue of section 3(3) for

A. only section 12(a) complaint inquiries. B. the presidential appointment committee. C. all NHRC functions without any statutory boundary. D. the functions in section 12(b) to (j), excluding section 12(a) by that deemed status.

Answer: D.

Option-specific explanations:

- **A:** Section 12(a) is the function excluded from the deemed-member formula.
- **B:** The selection committee is separately specified in section 4.
- **C:** Section 3(3) expressly imposes a functional boundary.
- **D:** This reproduces the current statutory range accurately.

Examiner trap 4: The correct range begins with clause (b), not clause (c).

MCQ 5. NHRC chair eligibility

Who satisfies the current statutory qualification for NHRC Chairperson?

A. A person who has been Chief Justice of India or a Judge of the Supreme Court B. Any former Chief Justice of a High Court C. Only a serving Chief Justice of India D. Any human-rights expert with ten years' experience

Answer: A.

Option-specific explanations:

- **A:** The 2019 Amendment widened the former CJI-only formulation to include a person who has been an SC Judge.
- **B:** High Court Chief Justice experience qualifies the separate ordinary judicial-member category, not the Chair by itself.
- **C:** The statutory phrase is 'has been', not 'must be serving'.
- **D:** Expertise alone belongs to the expert-member route, not Chairperson eligibility.

Examiner trap 5: Do not confuse the Chairperson route with the expert-member route.

MCQ 6. Selection committee

Which office is not a member of the section 4 selection committee?

A. Speaker of the Lok Sabha B. Chief Justice of India C. Union Home Minister D. Deputy Chairman of the Rajya Sabha

Answer: B.

Option-specific explanations:

- **A:** The Lok Sabha Speaker is one of the six members.
- **B:** The CJI has a consultation role for specified sitting-judge appointments but is not on the committee.
- **C:** The Minister in charge of Home Affairs is a member.
- **D:** The Rajya Sabha Deputy Chairman is a member.

Examiner trap 6: Consultation with an office-holder does not make that office-holder a committee member.

MCQ 7. NHRC tenure

Which statement reflects section 6 after the 2019 Amendment?

A. Every member has a single non-renewable five-year term. B. Members serve during presidential pleasure without an age limit. C. The term is three years; reappointment is allowed, subject to the age ceiling of seventy. D. The term is six years or age sixty-five, whichever is earlier.

Answer: C.

Option-specific explanations:

- **A:** Five years is the pre-2019 rule and non-renewability is incorrect.
- **B:** Removal is governed by section 5, not unrestricted pleasure.
- **C:** This states the current duration, reappointment rule and ceiling.
- **D:** Neither six years nor sixty-five is the PHRA formula.

Examiner trap 7: The amendment shortened tenure but did not abolish reappointment.

MCQ 8. Direct removal ground

Which circumstance is a direct statutory ground for presidential removal without first proving misbehaviour through the Supreme Court inquiry route?

A. A dissenting recommendation B. Failure to attend one meeting C. Criticism by Parliament D. Being adjudged insolvent

Answer: D.

Option-specific explanations:

- **A:** Disagreement with a recommendation is not a removal ground.
- **B:** One absence is not listed.
- **C:** Political criticism is not a statutory ground.
- **D:** Insolvency appears in section 5(3)'s direct-removal list.

Examiner trap 8: Keep the proved-misbehaviour track separate from the listed objective grounds.

MCQ 9. Section 12(a)

NHRC may inquire under section 12(a) into

A. a violation or abetment, or public-servant negligence in prevention, on the authorised entry routes. B. every breach of a private contract without public-authority connection. C. only matters referred by Parliament. D. only violations already proved by a criminal court.

Answer: A.

Option-specific explanations:

- **A:** This captures the subject and the public-servant nexus.
- **B:** The PHRA is not a general private-contract forum.
- **C:** Parliamentary reference is not the sole entry route.
- **D:** Inquiry precedes, and does not require, a criminal conviction.

Examiner trap 9: The public-servant wording attaches expressly to negligence in prevention.

MCQ 10. Court intervention

Section 12(b) permits NHRC to intervene in a pending human-rights proceeding

A. whenever the Commission wishes, despite the court. B. with the approval of that court. C. only after final judgment. D. only if the Union Home Ministry consents.

Answer: B.

Option-specific explanations:

- **A:** The court retains control of its proceeding.
- **B:** Court approval is the express statutory condition.
- **C:** Intervention concerns a pending proceeding, not only a concluded one.
- **D:** The clause does not make Home Ministry consent the condition.

Examiner trap 10: Court-directed inquiry under section 12(a) and intervention requiring court approval under 12(b) are distinct.

MCQ 11. Institution visits

The section 12(c) visit function is best described as

A. a power to take permanent control of prisons. B. a power to sentence prison officials. C. a visit to specified State-controlled institutions to study inmate living conditions and recommend. D. a power limited to police stations named by Parliament.

Answer: C.

Option-specific explanations:

- **A:** Management remains with the competent government authority.
- **B:** Criminal sentencing belongs to courts.
- **C:** This states the purpose and recommendatory output.
- **D:** The clause is broader and is not based on parliamentary naming.

Examiner trap 11: Visit, study and recommend are not manage, prosecute and punish.

MCQ 12. Civil-court powers

Which consequence does section 13 not create?

A. Power to summon and examine witnesses on oath B. Power to require discovery and production of documents C. Power to requisition public records D. A general power to pass executable compensation decrees

Answer: D.

Option-specific explanations:

- **A:** Summoning is expressly listed.
- **B:** Document discovery and production are expressly listed.
- **C:** Public-record requisition is expressly listed.
- **D:** Compensation is recommended under section 18; no general decree power follows from section 13.

Examiner trap 12: Evidence power and remedy power arise from different sections.

MCQ 13. Limited deemed-court status

The safest statement about NHRC's deemed-court status is

A. It is purpose-specific for listed Penal Code and criminal-procedure consequences. B. It makes every NHRC recommendation a civil decree. C. It gives NHRC the Supreme Court's writ jurisdiction. D. It authorises NHRC to punish every criticism as contempt.

Answer: A.

Option-specific explanations:

- **A:** Sections 13(4)-(5) define limited consequences tied to proceedings and specified offences.
- **B:** Section 18 recommendations remain non-self-executing.
- **C:** Writ jurisdiction remains with constitutional courts.
- **D:** The Act does not confer a general contempt jurisdiction.

Examiner trap 13: The phrase 'deemed to be a civil court' must always be followed by its statutory purpose.

MCQ 14. Investigation agency

Under section 14, NHRC may use a Central or State government officer or agency

A. without informing any government. B. with the concurrence of the concerned government and under Commission direction and control. C. only after a criminal court frames charges. D. only for promotional research.

Answer: B.

Option-specific explanations:

- **A:** The statute requires concurrence.
- **B:** This states both the concurrence gate and operational relationship.
- **C:** Commission investigation is not contingent on framed criminal charges.
- **D:** Section 14 concerns inquiry-related investigation.

Examiner trap 14: Concurrence is a legal condition; Commission verification is a separate safeguard.

MCQ 15. Section 17

If information called for under section 17 is not received within the stipulated time, NHRC may

A. automatically convict the named official. B. award final damages as a decree. C. proceed to inquire into the complaint on its own. D. refer every case to Parliament.

Answer: C.

Option-specific explanations:

- **A:** Conviction remains judicial.
- **B:** Section 18 uses recommendatory language.
- **C:** The proviso expressly allows the Commission to proceed.
- **D:** Parliamentary laying concerns reports, not an automatic complaint route.

Examiner trap 15: A report-first procedure does not give the government a veto through silence.

MCQ 16. Section 18 output

Which is the correct legal formulation?

A. NHRC itself imprisons the responsible public servant. B. NHRC executes compensation as an ordinary civil decree. C. NHRC finally determines criminal guilt. D. NHRC may recommend compensation, prosecution, further action or interim relief and may approach a constitutional court.

Answer: D.

Option-specific explanations:

- **A:** The Commission has no sentencing power.
- **B:** The Act says recommend payment, not execute a decree.
- **C:** Criminal guilt is for the competent court.
- **D:** This accurately combines the section 18 routes.

Examiner trap 16: In answers, retain the verbs 'recommend' and 'approach'.

MCQ 17. Ordinary response period

The ordinary section 18 period for government or authority comments is

A. one month, or further time allowed by the Commission. B. three months without extension. C. one year. D. seven days.

Answer: A.

Option-specific explanations:

- **A:** Section 18(e) supplies this period.

- **B:** Three months belongs to the armed-forces route.
- **C:** One year is the section 36(2) inquiry bar.
- **D:** Seven days is not the statutory period here.

Examiner trap 17: Match each period to its provision: one month, three months, one year.

MCQ 18. Armed forces definition

For the PHRA, 'armed forces' includes

A. all State police personnel by default. B. naval, military and air forces and other armed forces of the Union. C. only the Army. D. every private security contractor.

Answer: B.

Option-specific explanations:

- **A:** State police are not automatically within section 2(1)(a).
- **B:** This follows the statutory definition.
- **C:** The definition is not confined to the Army.
- **D:** Private contractors are not included merely by their work.

Examiner trap 18: Do not use 'armed forces' as a loose synonym for every uniformed service.

MCQ 19. Section 19 procedure

After receiving the Central Government's report in an armed-forces complaint, NHRC may

A. conduct an ordinary direct inquiry regardless of section 19. B. sentence the personnel concerned. C. not proceed further or make recommendations to the Central Government. D. transfer the criminal trial to itself.

Answer: C.

Option-specific explanations:

- **A:** Section 19 displaces the ordinary track.
- **B:** Sentencing belongs to a court.
- **C:** These are the two statutory choices.
- **D:** NHRC is not a trial court.

Examiner trap 19: The special route narrows procedure; it does not erase rights law.

MCQ 20. Armed-forces follow-up

The Central Government ordinarily informs NHRC of action on a section 19 recommendation within

A. one month. B. six months. C. one year. D. three months, or further time allowed.

Answer: D.

Option-specific explanations:

- **A:** One month is the ordinary section 18 period.
- **B:** Six months is not the section 19 formula.
- **C:** One year concerns jurisdiction.
- **D:** Section 19(2) supplies three months plus permitted extension.

Examiner trap 20: The special procedure has its own longer response clock.

MCQ 21. SHRC subject scope

An SHRC may inquire into violations relating to

A. entries in the State List and Concurrent List, subject to the already-inquired bar. B. only the Union List. C. foreign affairs and defence exclusively. D. every matter occurring geographically in the State.

Answer: A.

Option-specific explanations:

- **A:** Section 21(5) ties jurisdiction to Lists II and III and adds the duplication proviso.
- **B:** Union List-only jurisdiction is incorrect.
- **C:** These are predominantly Union fields.
- **D:** Location alone does not answer the subject-matter test.

Examiner trap 21: Use the Seventh Schedule, not a simple territory test.

MCQ 22. SHRC appointment and removal

Which pair is correct?

A. President appoints; Governor removes B. Governor appoints; President removes C. Chief Justice appoints; Chief Minister removes D. State Legislature appoints and removes

Answer: B.

Option-specific explanations:

- **A:** The President is not the SHRC appointing authority.
- **B:** Sections 22 and 23 create this asymmetry.
- **C:** Judicial consultation does not replace the statutory authorities.
- **D:** The legislature is not given these powers.

Examiner trap 22: Resignation to the Governor must not be confused with removal by the President.

MCQ 23. SHRC chair eligibility

After the 2019 Amendment, an SHRC Chairperson must be a person who has been

A. only a District Judge. B. only Chief Justice of India. C. Chief Justice or Judge of a High Court. D. a civil servant of Chief Secretary rank.

Answer: C.

Option-specific explanations:

- **A:** District Judge experience belongs to the judicial-member route.
- **B:** CJI experience is not the required State-chair formula.
- **C:** This is the widened current qualification.
- **D:** Civil-service rank is not the qualification.

Examiner trap 23: The 2019 change widened the chair route beyond former High Court Chief Justices.

MCQ 24. SHRC adapted functions

When section 12 applies to an SHRC through section 29, which function is omitted?

A. Court intervention with approval B. Institution visits C. Research D. Study of treaties and other international instruments under section 12(f)

Answer: D.

Option-specific explanations:

- **A:** Section 12(b) remains applicable with the State-Commission adaptation.
- **B:** Section 12(c) remains applicable.

- **C:** Section 12(g) remains applicable.
- **D:** Section 29(c) expressly omits clause (f).

Examiner trap 24: The omitted clause is treaty study, not complaint inquiry.

MCQ 25. Human Rights Court

A Human Rights Court under section 30 is

A. a Court of Session that a State may specify for a district with High Court Chief Justice concurrence. B. an internal bench of NHRC. C. a court automatically created in every district by the Act without notification. D. the Supreme Court exercising Article 32.

Answer: A.

Option-specific explanations:

- **A:** This follows the enabling notification design.
- **B:** NHRC does not contain a criminal trial bench.
- **C:** The word 'may' and notification requirement defeat automatic creation.
- **D:** Article 32 is a distinct constitutional jurisdiction.

Examiner trap 25: Designation of a Sessions Court does not create a new tier of judiciary.

MCQ 26. Special Public Prosecutor

An advocate specially appointed under section 31 must have practised for at least

A. five years. B. seven years. C. ten years. D. twelve years.

Answer: B.

Option-specific explanations:

- **A:** Five years is below the statutory minimum.
- **B:** Seven years is the exact threshold.
- **C:** Ten years is not required.
- **D:** Twelve years is not required.

Examiner trap 26: The State may instead specify a Public Prosecutor.

MCQ 27. One-year bar

Which case treats section 36(2) as a jurisdictional bar and rejects a generic continuing-wrong theory for completed detention?

A. Kesavananda Bharati v State of Kerala B. S.R. Bommai v Union of India C. N.C. Dhondial v Union of India D. Indra Sawhney v Union of India

Answer: C.

Option-specific explanations:

- **A:** This case concerns constitutional amendment limits.
- **B:** This case concerns federalism and Article 356.
- **C:** The 2003 judgment directly controls the PHRA limitation point.
- **D:** This case concerns reservations.

Examiner trap 27: Continuing consequences do not necessarily mean a continuing violative act.

MCQ 28. Paramjit Kaur exception

Why did section 36(2) not control NHRC's role in Paramjit Kaur?

A. The Act had been repealed. B. The complaint concerned only a private contract. C. NHRC had enacted a limitation waiver regulation. D. NHRC was acting as the Supreme Court's expert body under Article 32 directions, not exercising ordinary statutory jurisdiction.

Answer: D.

Option-specific explanations:

- **A:** The PHRA remained operative.
- **B:** That was not the reason.
- **C:** A regulation cannot simply repeal the statutory bar.
- **D:** This is the precise exception reiterated in Dhoundial.

Examiner trap 28: A Supreme Court reference does not create a general NHRC power to ignore the Act.

MCQ 29. Section 36(1)

Section 36(1) prevents NHRC from inquiring into a matter that is

A. pending before an SHRC or another commission duly constituted by law. B. mentioned in a newspaper. C. older than six months. D. critical of the Union Government.

Answer: A.

Option-specific explanations:

- **A:** This is the anti-duplication rule.
- **B:** Media coverage does not create the bar.
- **C:** The separate time bar is one year under subsection (2).
- **D:** Political sensitivity is not a jurisdictional criterion.

Examiner trap 29: Subsection (1) is overlap; subsection (2) is time.

MCQ 30. Section 37

Who may constitute a special investigation team under section 37?

A. Only the Chief Justice of India B. The Government, when it considers such a team necessary C. NHRC acting as a criminal court D. GANHRI

Answer: B.

Option-specific explanations:

- **A:** The section does not reserve the power to the CJI.
- **B:** The statutory actor is the Government.
- **C:** NHRC is not a criminal court and section 37 is a separate route.
- **D:** GANHRI is an international accreditation alliance, not an Indian investigative authority.

Examiner trap 30: Do not merge section 37 SITs with section 14 agency utilisation.

MCQ 31. Specialised commissions

Which statement is correct about merging NCSC, NCST and NCBC into a statutory NHRC?

A. It can be done by an NHRC administrative order. B. Section 3(3) has already dissolved them. C. Their constitutional status under Articles 338, 338A and 338B means ordinary PHRA amendment cannot simply absorb their constitutional mandates. D. The Governor can merge them through a State notification.

Answer: C.

Option-specific explanations:

- **A:** NHRC has no such constituent power.

- **B:** Deemed membership is coordination, not dissolution.
- **C:** This states the constitutional barrier accurately.
- **D:** A State notification cannot alter national constitutional commissions.

Examiner trap 31: An umbrella argument must separate constitutional and statutory bodies.

MCQ 32. EEVFAM

The most defensible use of EEVFAM (2016) in this topic is that it

A. made every NHRC recommendation binding. B. abolished section 19. C. authorised NHRC to convict armed-forces personnel. D. required credible investigation of alleged extra-judicial executions and rejected blanket justification for excessive force, while preserving distinct institutional roles.

Answer: D.

Option-specific explanations:

- **A:** The judgment did not convert recommendations into decrees.
- **B:** Section 19 remained in force.
- **C:** Criminal adjudication did not move to NHRC.
- **D:** This is a bounded rights-accountability proposition.

Examiner trap 32: Use EEVFAM for investigation and accountability, not fictional NHRC powers.

PYQS AND ANSWER PRACTICE

Verified-PYQ control

- The two direct owner-routed questions below are reproduced from audited local official-paper records.
- UPSC publishes questions, not official Mains model answers; every solution below is an examiner-oriented model, never an official key.
- No direct objective NHRC/SHRC PYQ with a locally controlled official key is claimed. The related 2023 constitutional-body classification item is not reconstructed as a direct topic PYQ.

Verified Mains PYQ 1 - UPSC GS-II 2018, Q16 - 15 marks, 250 words

Question: Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case.

Directive decode: Take a position; distinguish constitutional and statutory bodies; weigh coordination gains against loss of specialised mandates; propose a legally feasible architecture.

Model answer:

Multiplicity can produce forum confusion, repeated fact-finding and weak follow-up, but merging every vulnerable-section commission into a statutory Human Rights Commission would be constitutionally difficult and institutionally unwise.

Case for coordination: NHRC, NCW, NCM, NCPCR and disability institutions often encounter intersecting dignity and discrimination claims. PHRA section 3(3) already creates limited integration by making seven specialised office-holders deemed NHRC members for section 12(b)-(j). Common intake standards, lawful information exchange and reasoned referral can reduce duplication.

Case against merger: NCSC, NCST and NCBC are constitutional commissions under Articles 338, 338A and 338B. Their constitutional reporting, consultation and group-specific safeguards cannot be absorbed into a statutory NHRC through ordinary administrative action or a simple PHRA amendment. Specialised statutory bodies also hold expertise in gender, child, minority and disability law that a mega-body may dilute.

Middle path: retain mandates; use section 36(1), section 21(5) and section 13 transfer powers as an anti-overlap spine; create interoperable case tracking, joint thematic studies and written referral reasons.

Thus, India needs coordinated specialisation under stronger rights standards, not institutional erasure.

Verified Mains PYQ 2 - UPSC GS-II 2021, Q12 - 15 marks, 250 words

Question: Though the Human Rights Commissions have contributed immensely to the protection of human rights in India, yet they have failed to assert themselves against the mighty and powerful. Analyzing their structural and practical limitations, suggest remedial measures.

Directive decode: Acknowledge contribution; separate statutory constraints from operational weaknesses; pair each diagnosis with a proportionate remedy.

Model answer:

Human Rights Commissions create accessible records of abuse, but their statutory design and operational dependence limit remedies against powerful State actors.

Contribution: Section 12 enables suo motu inquiry, court intervention with approval, institutional visits and safeguard review; section 13 supplies strong evidence powers. Public reports, interim-relief recommendations and court approaches can expose violations and trigger action.

Structural limits: Section 18 recommendations are not self-executing; government must respond but need not automatically accept them. Section 36(2)'s one-year bar was held jurisdictional in *N.C. Dhoundial*. Section 19 replaces ordinary inquiry into armed-forces complaints with a Central-report route. SHRCs face List II/List III and duplication limits.

Practical limits: government-linked police investigators may face conflicts; vacancies, uneven State capacity, delayed reports, weak victim support and poor prosecution referral reduce impact.

Remedies: establish an independent multidisciplinary investigation cadre; publish selection criteria and vacancy calendars; require time-bound recommendation-wise acceptance or reasoned rejection with judicial escalation; legislate calibrated relief from the one-year bar for grave or concealed violations; permit safeguarded independent fact-finding under section 19; strengthen Human Rights Court and prosecutor referral.

The goal is not to make NHRC a parallel criminal court, but to make its evidence produce accountable follow-through.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks, 150 words

Question: Distinguish civil-court inquiry powers from binding adjudicatory power in the PHRA.

Model answer:

NHRC possesses strong evidence-gathering powers but not general adjudicatory authority. Section 13 permits summons, examination on oath, document production, affidavit evidence, public-record requisition and commissions. It also creates limited deemed-court and judicial-proceeding consequences for specified offences and procedural provisions.

These powers improve the reliability of findings. For example, compelled documents and sworn testimony can establish whether a public servant violated rights or negligently failed to prevent a violation. Yet section 18 uses different verbs: NHRC may recommend compensation, prosecution, further action or interim relief, and may approach the Supreme Court or High Court.

Therefore, a strong evidentiary record does not become an executable decree or criminal conviction. Binding consequences arise when government accepts and implements recommendations, prosecutors invoke substantive law, or courts issue orders. The accurate description is a powerful statutory inquiry body with recommendatory remedies, not a civil or criminal court.

Original Mains 2 - 10 marks, 150 words

Question: Explain the federal logic of SHRC jurisdiction and removal.

Model answer:

SHRC design combines decentralised access with centrally protected tenure. Under section 21(5), an SHRC may inquire only into matters relatable to State List and Concurrent List entries. It must abstain where NHRC or another duly constituted commission is already inquiring into that matter. This aligns State-level rights scrutiny with the Seventh Schedule and limits duplicate proceedings.

Appointment is local: the Governor appoints after recommendation by a committee led by the Chief Minister and including legislative and opposition offices. Removal is different. Under section 23, the President removes; proved misbehaviour or incapacity requires a Supreme Court inquiry.

The asymmetry can reduce immediate State-executive pressure on a commission investigating State authorities. However, State provision of staff, investigators and finance still creates operational dependence. Thus, SHRC federalism is neither complete State autonomy nor Union control: it is State access, subject-matter limits, central removal safeguards and shared statutory procedure.

Original Mains 3 - 15 marks, 250 words

Question: Examine whether section 36(2)'s one-year bar should be retained.

Model answer:

Section 36(2) bars NHRC and SHRC inquiry after one year from the alleged violative act. It protects timely evidence and prevents an open-ended statutory docket, but its inflexibility can exclude precisely those victims least able to complain quickly.

Case for retention: memories fade, records disappear and officials change; a clear threshold promotes administrability. In *N.C. Dhoundial v Union of India* (2003), the Supreme Court treated the bar as jurisdictional and rejected the proposition that continuing effects automatically convert a completed detention into a continuing wrong.

Case for reform: victims of custody, trafficking, displacement, institutionalisation or intimidation may discover facts late or fear retaliation. Grave violations may involve concealment by the very authority controlling evidence. A rigid year can privilege official delay.

Calibrated solution: Parliament should retain a default period but permit reasoned condonation for grave violations, concealment, continuing acts or demonstrated incapacity, with notice and recorded reasons. The amendment should define factors, cap discretionary abuse and preserve other commissions' and courts' jurisdiction. Better digital preservation and referral should accompany reform.

Until amendment, the Commission cannot invent a general exception. A fair answer therefore respects *Dhoundial* as current law while arguing for a narrowly structured legislative safety valve.

Original Mains 4 - 15 marks, 250 words

Question: Discuss how Human Rights Courts can strengthen, but cannot replace, Human Rights Commissions.

Model answer:

The PHRA separates inquiry from adjudication. NHRC and SHRC receive complaints, gather evidence, inspect institutions, review safeguards and recommend relief or prosecution. Sections 30 and 31 permit a State, with the High Court Chief Justice's concurrence, to specify a Court of Session as a Human Rights Court and to designate a Public Prosecutor or an advocate with at least seven years' practice.

Human Rights Courts can strengthen the system by giving serious cases a visible trial route, trained prosecution and potentially quicker scheduling. Commission findings may identify evidence, institutional patterns and victims needing protection. Section 37 special investigation teams can support investigation and prosecution where government considers them necessary.

However, a designated Sessions Court does not create a new substantive offence, replace lawful police investigation or make a Commission recommendation conclusive proof. Nor can courts perform NHRC's promotional work, jail visits, treaty study, literacy, thematic review or public reporting. Uneven notifications, unclear referrals and ordinary

docket pressure may also make designation symbolic.

Reform should map offences under existing penal and special laws, create Commission-police-prosecutor referral protocols, train prosecutors, support witnesses and publish case-flow data. The institutions are complementary: Commissions investigate and recommend; investigators build criminal cases; prosecutors present them; courts decide guilt and binding relief.

Original Mains 5 - 20 marks, 250 words

Question: Evaluate NHRC independence against the Paris Principles and propose reforms.

Model answer:

NHRC has statutory independence safeguards, yet its institutional design does not fully eliminate executive dependence. The Paris Principles, endorsed by UN General Assembly Resolution 48/134 in 1993, emphasise a broad legal mandate, pluralism, stable tenure, adequate resources, independent methods and cooperation with civil society.

Safeguards: the PHRA defines a broad protection-and-promotion mandate; appointment is by presidential warrant after a six-member committee recommendation; proved misbehaviour or incapacity requires a Supreme Court inquiry; section 13 gives substantial evidence powers; reports reach legislatures.

Gaps: political-executive actors dominate the selection committee; statutory pluralism is limited mainly to three experts and one-woman minimum; three-year renewable tenure may affect incentives; sections 11 and 14 rely on government-provided police and agencies; funding and vacancies affect capacity; section 18 follow-up remains recommendatory.

GANHRI's March 2025 accreditation report recommended alteration to B status and identified independence and pluralism concerns. India challenged that recommendation. As of 8 September 2026, GANHRI's public material continued to list India at A while an alteration review was scheduled for November 2026; no final downgrade should be asserted.

Reform should use open nominations, published criteria, diverse expertise, fixed appointment calendars, an independent multidisciplinary investigation cadre, protected resources, recommendation-wise reasoned responses and parliamentary follow-up. Independence means credible distance plus accountability, not absence of review.

Original Mains 6 - 20 marks, 250 words

Question: Design a coordinated human-rights accountability architecture without creating a super-commission.

Model answer:

India's rights architecture should coordinate specialised institutions while preserving their legal mandates. NHRC and SHRC are statutory inquiry and promotion bodies. NCSC, NCST and NCBC are constitutional commissions; NCM, NCW, NCPCR and disability institutions have specialised statutory fields. Courts issue binding orders, police investigate offences, prosecutors conduct cases and legislatures scrutinise reports.

Intake: a common portal should record the alleged right, public authority, territory, date, vulnerability and parallel proceeding. It should preserve limitation dates rather than make victims restart.

Referral: NHRC should use section 13(6) transfers only where the SHRC is competent. Section 36(1) and section 21(5) should prevent duplicate inquiry, with written reasons identifying the lead body.

Joint learning: commissions may share anonymised trend data, conduct lawful thematic studies and issue coordinated recommendations while each retains complaint authority. Deemed membership under section 3(3) supports section 12(b)-(j) cooperation but does not merge section 12(a) inquiries.

Enforcement chain: Commission findings should move through a tracked matrix to departments, independent investigators, prosecutors, Human Rights Courts and constitutional courts as appropriate. Governments should accept or reject each recommendation with reasons.

Safeguards: data protection, victim consent, witness support, appeal or review routes and legislative oversight are essential.

The objective is one navigable system, not one legally overgrown institution.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

A. Paris Principles and date-controlled GANHRI position

The Paris Principles were endorsed by UN General Assembly Resolution 48/134 on 20 December 1993. They are international standards for national human-rights institutions, not a self-executing Indian statute. The useful answer heads are: broad legal mandate; autonomy and stable tenure; pluralist composition; adequate resources and own staff; accessible working methods; investigation capacity; engagement with civil society, Parliament and international mechanisms.

GANHRI means the **Global Alliance of National Human Rights Institutions**. Its Sub-Committee on Accreditation assesses national institutions against the Paris Principles. The March 2025 SCA report recommended alteration of India's NHRC accreditation to B. NHRC challenged that recommendation under GANHRI procedure. As checked on **8 September 2026**, GANHRI public material continued to show India at A and listed an alteration review for the SCA session of **9-20 November 2026**. Therefore:

- safe statement: **A remains the public listing, with an unresolved alteration process;**
- unsafe statement: **India has already been finally downgraded;**
- analytical use: connect scrutiny to appointments, pluralism, investigation independence, civil-society engagement and resources.

B. Recommendation design: three reform choices

Model	Advantage	Risk	Defensible use
automatically binding recommendation	fast compliance	may bypass adjudicatory safeguards and institutional competence	not current law; use cautiously
comply-or-reasoned-reject	preserves executive responsibility while exposing refusal	still needs review and consequences for silence	strongest near-term statutory option
court confirmation/escalation	converts justified findings into binding process	adds litigation time and court burden	suitable for grave or persistent non-compliance

C. One-year bar: possible legislative test

A calibrated amendment could permit condonation only where the complainant proves concealment, continuing acts, grave institutional abuse, custody/disability-related incapacity or late discovery that could not reasonably have occurred earlier. The Commission should record reasons, hear affected parties and preserve evidentiary fairness. This is a reform model, not present section 36(2).

D. Armed-forces accountability without overstatement

Section 19 currently controls the Commission's procedure. A reform could allow an independent panel with security clearances, protected evidence handling, witness safeguards and judicially reviewable redactions. Operational necessity can qualify disclosure, but cannot become an assumption that every use of force is lawful. *EEVFAM* supports credible inquiry into alleged excessive or retaliatory force; it does not rewrite section 19.

E. Advanced paragraph

Claim: formal statutory safeguards do not alone establish substantive independence. **Named evidence:** sections 4-6 protect appointment and removal, but sections 11 and 14 make government personnel central to investigation, while the 2025 GANHRI SCA report raised pluralism and independence concerns. **Analysis:** where the alleged violator and the investigator belong to connected executive systems, trust and perceived impartiality decline, weakening compliance with even well-founded findings. **Qualification:** dependence creates a structural risk, not proof that every officer or inquiry lacks integrity; reform should target institutional incentives and transparent verification.

CONSOLIDATED REGISTER NOTES

Legal identity and chronology

- PHRA title year: **1993**; deemed commencement: **28 September 1993**; presidential assent: **8 January 1994**; Act 10 of 1994.
- NHRC and SHRC are **statutory**, not constitutional.
- 2006: court-direction inquiry route; wider visit clause; NHRC-to-SHRC transfer; recast post-inquiry procedure; revised institutional provisions.
- 2019: broader chair eligibility; three NHRC experts with at least one woman; expanded deemed members; three-year tenure; reappointment wording; SHRC and Union-territory changes.

Statutory human-rights field

- Section 2(1)(d): life, liberty, equality and dignity; Constitution or defined International Covenants; enforceable by courts in India.
- Section 2(1)(f): ICCPR + ICESCR + another UNGA covenant/convention only if centrally notified.
- Complaint inquiry requires the section 12(a) statutory nexus; not every moral claim or private dispute belongs to NHRC.

NHRC design

- Section 3: former CJI/former SC Judge Chair; one serving/former SC Judge; one serving/former HC Chief Justice; three experts, at least one woman.
- Seven deemed members for **section 12(b)-(j)** only: NCM, NCSC, NCST, NCW, NCBC, NCPDR and CCPD.
- Section 4 committee: PM, Lok Sabha Speaker, Union Home Minister, Lok Sabha LoP, Rajya Sabha LoP, Rajya Sabha Deputy Chairman; President appoints.
- Sections 5-6: resignation to President; President removes; SC inquiry for proved misbehaviour/incapacity; direct listed grounds; three years, reappointment, age seventy; post-government-employment bar.
- Section 7: President authorises acting/discharging member.

Functions, inquiry and fairness

- Section 12: inquire; court intervention with approval; visits; safeguard and inhibiting-factor review; treaty study; research; literacy; NGO encouragement; promotion.
- Section 13: civil-court evidence powers; limited deemed-court consequences; no general adjudication.
- Sections 15-16: statement protection and hearing where conduct/reputation may be harmed.
- Sections 11/14: government-provided staff and agency use with concurrence; Commission direction, report and verification.
- Section 17: report call; own inquiry on delay; closure if adequate action/no further inquiry; direct inquiry where necessary.

Remedies and reports

- Section 18: **recommend** compensation/damages, prosecution/action, interim relief; approach SC/HC; one-month ordinary response; publication.
- Not a compensation decree, conviction, direct punishment or automatic compliance order.
- Section 20: annual/special report -> Central/concerned State Government -> Parliament/State Legislature + action memorandum + reasons for non-acceptance.

Armed forces

- Section 2(1)(a): naval, military, air and other armed forces of Union.
- Section 19: seek Central report -> stop or recommend -> three-month response -> publish.
- No ordinary direct NHRC investigation under section 14; State police not automatically armed forces.

SHRC

- Section 21: State **may** constitute; Chair = former HC Chief Justice/Judge; judicial member = serving/former HC Judge or District Judge with minimum seven years as District Judge; one expert.
- Scope: List II + List III; no inquiry if NHRC/other commission already inquiring.
- Common Chair/member possible for two or more States with consent and committee process.
- UTs other than Delhi may be assigned to an SHRC by Central order; Delhi handled by NHRC.
- Sections 22-24: Governor appoints; resignation to Governor; **President removes**; same SC-inquiry logic; three years/age seventy/reappointment.
- Sections 27-29: State staff; legislative reports; sections 9,10,12-18 applied with modifications; section 12(f) omitted.

Courts, prosecutors and SITs

- Section 30: State **may**, with HC Chief Justice concurrence, specify a Sessions Court for a district; existing Special Court proviso.
- Section 31: Public Prosecutor or advocate with at least seven years' practice.
- Section 37: Government may constitute SITs for investigation and prosecution.
- Commission -> recommendation; police/SIT -> investigation; prosecutor -> case; court -> binding adjudication.

Jurisdiction and cases

- Section 36(1): NHRC no inquiry into matter pending before SHRC/another lawful commission.
- Section 36(2): NHRC/SHRC no inquiry after one year from alleged violative act.
- *N.C. Dhoundial* (11 December 2003): jurisdictional bar; continuing effect is not automatically a continuing wrong.
- *Paramjit Kaur* (1999), clarified in *Dhoundial*: NHRC assisting Supreme Court under Article 32 acts as expert body; ordinary section 36(2) bar does not control that assigned role.
- *EEVFAM* (2016): alleged extra-judicial executions/excessive force require credible investigation and accountability; no blanket immunity; institutional roles remain distinct.

Paris Principles, limits and reforms

- Paris Principles: mandate, independence, pluralism, resources, stable tenure, methods, accessibility.
- GANHRI control date 8 September 2026: public A listing; challenged 2025 alteration recommendation; November 2026 alteration review scheduled; no final downgrade asserted.
- Strengths: access, suo motu action, evidence powers, visits, reports, systemic review, public pressure.
- Limits: recommendatory output, investigator dependence, vacancies, one-year bar, armed-forces route, uneven SHRC/court operation, delayed follow-up.
- Reforms: open plural selection; independent multidisciplinary investigation; protected resources; time-bound reasoned response; calibrated limitation reform; safeguarded armed-forces fact-finding; victim support; court/prosecutor/referral tracking.

Final answer spine

Statutory identity -> exact section -> mechanism -> named case/evidence -> practical effect -> legal limit -> matched reform -> qualified verdict.

NHRC and SHRC are evidence-building, rights-promoting watchdogs with strong inquiry tools but non-self-executing remedies; reform should strengthen independence and follow-through without inventing judicial or punitive powers.